

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 08/04/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-08932
CASE NAME: CITIBANK, N.A. VS. DOMINIC COSMI
*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT
PURSUANT TO STIPULATION
FILED BY: CITIBANK, N.A.
***TENTATIVE RULING**

Background

Plaintiff filed, on 5/1/26, a Motion to enter judgment pursuant to stipulation.

The Motion is unopposed, but the proof of service indicates mail service to address in Concord. The problem, however, is that there was never service of process in this matter, and no other evidence to suggest that this mailing address is indeed that of the Defendant.

Thus, this court finds that there is no service of this Motion.

Disposition

This Motion will be continued to 9/8/26, 9am.

Plaintiff to properly notify Defendant of Motion and hearing date.

2. 9:00 AM CASE NUMBER: L24-10338

CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. BRIAN LAM

***HEARING ON MOTION IN RE: NOTICE OF MOTION TO VACATE DEFAULT JUDGMENT FILED BY PLN
ON 4/29/26**

FILED BY: CROWN ASSET MANAGEMENT, LLC

***TENTATIVE RULING**

Plaintiff filed a Motion to set aside a judgment, out of the interests of justice.

The Motion was served on a mailing address for Defendant that was also listed on the Answer.

On 1/14/26, this court rendered a judgment in favor of Plaintiff in the amount of \$31,312.09, with costs of \$443.55.

In their Motion, Plaintiff cites the fact that Defendant had begun the process of bankruptcy, unbeknownst to Plaintiff.

Disposition

Plaintiff's Motion is granted.

This matter will be stayed.

A CMC will be scheduled for 1/27/27, 830 am, to check on the status of the bankruptcy proceeding.

Plaintiff to file Order, and serve copy of filed Order on Defendant.

3. 9:00 AM CASE NUMBER: L25-00011

CASE NAME: DISCOVER BANK VS. JUAN CRUZ

***HEARING ON MOTION IN RE: NTC AND MTN TO VACATE JUDGMENT**

FILED BY: CRUZ, JUAN

***TENTATIVE RULING**

Defendant has filed a Motion to set aside the judgment. But there is no proof that Defendant provided any notice to the Plaintiff.

Disposition

This Motion will be continued to 9/8/26, 9am.

Defendant to provide notice of Motion and hearing date to Plaintiff.